

25CHCV03460 25CHCV03460

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Case Number: 25CHCV03460 Hearing Date: August 18, 2026 Dept: F43

Dept. F43

Hearing Date: 08-18-26

Case # 25CHCV03460, Mendoza v. General
Motors, LLC

Trial Date: N/A

MOTION FOR ATTORNEY

FEES, COSTS, AND EXPENSES

MOVING PARTY: Plaintiff Brisa Mendoza

RESPONDING PARTY: Defendant General Motors, LLC

RELIEF REQUESTED

Order awarding Plaintiff \$10,159.21: \$9,576 in attorney fees for litigating this matter and motion and \$583.21 in expenses.

RULING: Motion is granted in the reduced amount of
\$9,339.21: \$8,766 in attorney fees and
\$573.21 in costs and expenses.

SUMMARY OF ACTION

Plaintiff Brisa Mendoza filed this lemon law

action against defendant General Motors, LLC on September 25, 2025. Plaintiff alleges she purchased a new 2023 Chevrolet Silverado 1500, that the vehicle developed defects involving the ADAS/safety system, brake system and transmission during the warranty period, and Defendant and Defendant's authorized repair facilities failed to repair or replace the vehicle. Plaintiff asserts breaches of express and implied warranties under the Song-Beverly Consumer Warranty Act. Defendant answered on December 1, 2025.

On March 16, 2026, the parties settled the matter, with Defendant agreeing to pay Plaintiff \$58,000 to pay off Plaintiff's vehicle loan and damages and to pay Plaintiff's attorney fees pursuant to a noticed motion. (Declaration of David Bijan Zand ¶ 4; Declaration of Ryan Kay ¶ 10.) The notice of settlement was filed on June 29, 2026.

On July 10, 2026, Plaintiff filed the instant motion for \$9,576 in attorney fees and \$583.21 in costs and expenses incurred in litigating this matter. Defendant opposed on August 5, 2026, and Plaintiff replied on August 6, 2026.

ANALYSIS

A. Awarding Attorney Fees

A prevailing party is entitled to recover its attorneys' fees when authorized by contract, statute, or law. (See Code Civ. Proc., § 1033.5, subd. (a)(10); Civ. Code, § 1717, subd. (a).)

"A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (Bowman v. City of Berkeley (2005) 131 Cal.App.4th 173, 178.) If a buyer prevails in a Song-Beverly action, then the buyer is allowed to recover attorney fees. (Civ. Code, § 1794, subd. (d).)

Because Plaintiff is a buyer and this matter settled in Plaintiff's favor, Plaintiff is the prevailing party pursuant to Civil Code section 1794, subdivision (d).

1. Hourly Rates

Plaintiff requests a \$450 hourly rate for counsel of record, David Bijan Zand of Zand Law, APC.

(Declaration of David Bijan Zand at pp. 10:19-11:3.) Mr. Zand is a solo practitioner who handles all tasks without the help of legal assistants or paralegals. (Reply at p. 3:5-6.)

Defendant does not oppose Mr. Zand's hourly rate.

"The reasonable hourly rate is that prevailing in the community for similar work." (PLCM

Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) The moving party bears the initial burden of establishing the prevailing market "through its own affidavits." (MBNA Am. Bank, N.A. v. Gorman (2006) 147 Cal.App.4th Supp. 1, 13.) Once the moving party presents competent evidence of prevailing rates, the burden shifts to the opposing party. The court may "consider the attorney's skill as reflected in the quality of the work, as well as the attorney's reputation and status."

(Id. at p. 13.)

The court finds the \$450 hourly rate is reasonable.

Attorney Name

Requested Hourly Rate

Approved Hourly Rate

David Bijan Zand

\$450

\$450

2. Billing Entries

Plaintiff seeks fees for 14.68 hours litigating this matter and 6.60 hours related to the instant fee motion. (Zand Decl. at p. 10:10-18, Exh. A.)

The Song-Beverly Consumer Act only entitles Plaintiffs to attorney fees for "actual time expended."

(Civ. Code, § 1794, subd. (d).)

This means that analysis as to whether the fees and costs sought are reasonable under the circumstances is required.

(Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807,

816.) "A prevailing buyer has the burden

of 'showing that the fees incurred were 'allowable,' were reasonably necessary

to the conduct of the litigation, and were 'reasonable in amount.'" (Hanna

v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, 507, citations

omitted.) A verified fee bill is prima

facie evidence that the services listed were necessarily incurred. (Hadley v. Krepel (1985) 167

Cal.App.3d 677, 682.) If a fee request

is opposed, "[g]eneral arguments that fees claimed are excessive, duplicative,

or unrelated do not suffice." (Premier Med. Mgmt. Sys. v. Cal. Ins.

Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.) Once an objection to the fees has been

raised, then plaintiff's counsel bears the burden of showing that the fees were

reasonably necessary, and the court has the discretion to reduce fees

awarded. (En Palm, LLC v Teitler

Family Trust (2008) 162 Cal.App.4th 770, 775.)

In determining the reasonableness of fees, courts look to

the factors from Church of Scientology v. Wollersheim (1996) 42

Cal.App.4th 628, disapproved on other grounds by Equilon Enters. v. Consumer

Cause, Inc. (2002) 29 Cal.4th 53, 68 fn.5.

The factors from Wollersheim are (1) the amount of money involved

in the litigation; (2) the nature of the litigation and its difficulty and the

intricacies and importance of the litigation; (3) the skill required and

employed in handling the litigation, the necessity for skilled legal training

and ability in trying the case, and counsel's education and experience in the

particular type of work involved; (4) the attention given to the case; (5) the

success of the attorneys efforts; and (6) the time consumed by the litigation. (Id.)

Defendant challenges the reasonableness of the time

billed for several entries. According to

Defendant, the court should reduce the requested hours because Mr. Zand overbilled

for using templated documents, overbilled for tasks such as reviewing templated

documents, and seeks fees for work that has yet to occur. (Opp. at pp. 3:25-5:21.) In total Defendant asks the court to reduce

the request by \$4,725 or 10.5 hours.

In response, Plaintiff insists Mr. Zand actually and reasonably incurred the time billed.

According to Plaintiff, Defendant's supporting declaration and exhibits do not demonstrate that Mr. Zand never actually incurred the time billed. Plaintiff represents Mr. Zand's use of templated documents is necessary for efficiency purposes. (Reply at p. 6:12-19.)[1]

After reviewing Defendant's opposition alongside Mr. Zand's billing statement and Plaintiff's Reply, the court makes the following modifications:

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September 25, 2025: 3.8-hour entries for drafting, preparing, and reviewing the summons and complaint packet are reduced by 0.5 hours because other than the facts which are specific to each plaintiff's case, the document is nearly identical to previous complaints drafted by Mr. Zand. (Kay Decl., Exhs. A, B.)

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December 1, 2025: 0.6-hour entry for drafting a "meet and confer" correspondence is reduced by 0.3 hours because other than the individual addressed, the date, and the case name, the letter is identical to a letter Mr. Zand used in another case.
(Kay Decl., Exhs. D, E.)

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July 7 and 8, 2026: 5.10-hour entries for preparing the instant fee motion are reduced by 1.0 hour because other than the underlying facts, party names, case number, and case history, the instant motion is almost identical to an attorney fee motion Mr. Zand filed in a separate Song-Beverly matter. (Kay Decl., Exh. F.)

As to the 1.5 hours anticipated to respond to the opposition and attend the motion hearing, the court finds the request is reasonable considering the length of the opposition and reply.

Finally, Defendant fails to carry its burden concerning the "Answer" billing entry and the "Vehicle Surrender" billing entries. Considering the vehicle surrender process involves more than just scheduling, the court finds the 1.0 hour billed to review and coordinate the procedure is reasonable and was actually incurred.

Attorney Name

Requested Hours

Approved Hours

Approved

Rates

Total

David Bijan Zand

21.28

19.48

\$450

\$8,766

Total approved attorney fees: \$8,766

B. Costs

and Expenses

Plaintiff seeks \$583.21 in costs and expenses incurred in this matter. (Sura Decl., Exh. 12.) Defendant opposes the costs because no memorandum of costs was filed and Plaintiff only presents uncategorized printouts of credit card receipts and prospective items that have yet to be incurred. (Opp. at p. 6:16-25.) In response, Plaintiff contends the Song-Beverly Act allows costs and “expenses” that are reasonably incurred by the prevailing buyer, and the requested costs and expenses incurred in this matter are attached as an exhibit to Mr. Zand’s declaration. (Reply at pp. 8:2-9:1.)

“A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk[.] The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the

case.” (Cal. Rules of Court, rule 3.1700(a)(1).) Under the law, the court presumes a verified memorandum of costs is correct. However, a party may contest the costs that a prevailing party seeks. (Code Civ. Proc., § 1034 subd. (a).) The challenging party has the burden of demonstrating that those costs are unreasonable or unnecessary. (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486.)

In general, a party seeking attorney fees pursuant to an attorney-fee-shifting statute need not, in addition to filing a noticed motion, file a memorandum of costs for the attorney fees themselves, but must do so for those costs and expenses it seeks beyond the attorney fees. (Kaufman v. Diskeeper Corp. (2014) 229 Cal.App.4th 1, 8-10.) But failing to file a memorandum of costs when required forfeits those costs.

In Song-Beverly cases, a prevailing buyer must generally file a memorandum of costs to recover standard litigation costs but does not need to file a memorandum of costs to recover attorney fees and the broader category of “expenses” that require a court determination under Civil Code section 1794, subdivision (d). As such, prevailing parties usually take two approaches to ensure they can recover their costs and expenses: (1) file a memorandum of costs for standard recoverable costs (e.g., filing fees, deposition costs) pursuant to Rule 3.1700 and (2) simultaneously file a noticed motion for attorney fees, costs, and expenses costs under Civil Code section 1794(d) and Rule 3.1702.

Here, Plaintiff filed her noticed motion and attached copies of invoices and corresponding receipts for credit card payments. (Zand Decl., Exh. A at pp. 4-9 [service of process and e-filing fees for the summons and complaint and Plaintiff’s case management statement].) But Plaintiff did not file a memorandum for these items, despite the items being standard recoverable costs under Code of Civil Procedure section 2033.5, subdivision (a)(4), (14). However, considering Civil Code section 1794(d)’s broad language and the lack of case law stating these standard service and filing fees are not expenses, the court finds that the fees fall within the scope of Section 1794(d)’s “costs and expenses” language because they were reasonably incurred by Plaintiff in connection with commencing and litigating this matter: e-filing the summons and complaint, serving the summons and complaint on Defendant’s

registered agent for service, e-filing proof of service, and e-filing a case management statement.

Therefore, the court grants Plaintiff's request for costs and expenses in the reduced amount of \$573.21.[2]

CONCLUSION and ORDER

Motion is granted in the reduced amount of \$9,339.21: \$8,766 in attorney fees and \$573.21 in costs and expenses.

Plaintiff to give notice.

[1] The court notes that a portion of the quoted language in Plaintiff's Reply does not appear in the case *Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 32 [noting including "Legal research indicates that there is no governing California authority requiring fees for efficiently reusing information derived from other cases that counsel handled[.]").]

[2] A review of invoice number 0163352 with the corresponding credit card receipt includes indicates a \$10 discrepancy which is unaccounted for in the credit card receipt. (Zand Decl.; Compare Exh. A at p. 4, with p. 7.)